CHARLES NYATHI

Versus

PIONEER AFRICA LIMITED (now known
As Unifreight Africa Limited)

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 3 MARCH 2025, & 24 FEBRUARY 2026

Court Application to revive a judgment

J. Tshuma, for the applicant
L. Matapura, for the respondent

MPOKISENG DUBE J: This is an application to revive a judgment of the Labour Court. The applicant seeks relief as follows:

a. The Judgement under the cover of case number LC/MT/96/01, handed down by the Labour Court on the 15th of November 2005 under judgement number LC/MT/27/2005, be and is hereby revived as an executable order of that court.
b. The respondent is hereby ordered to pay the costs of this application on a legal practitioner and own client scale.

Brief Background

The applicant, after a protracted labour dispute, obtained judgment under cover of case number LC/MT/96/01. The Labour Court finalized the dispute on 15 November 2005 in judgment number LC/MT/27/2005. The applicant was granted the following relief:

(a) Respondent shall reinstate appellant without loss of salary and benefits, OR

(b) Respondent shall pay appellant damages for loss of employment in an agreed amount failing, which either party may apply to this Court for assessment of the said damages;

The respondent having complied with none of the above orders of court despite demand, the matter went into abeyance for about 19 years. I shall not discuss the reasons proffered, as that goes to the merits of the matter. Suffice to say, at the hearing of this application, I directed the parties to first deal with the preliminary points taken by the respondent. After argument on such points, I directed that the parties attend on the 19th March, wherein I would deliver my ruling. Before that, the applicant launched a fresh application under a separate case number seeking directions from this court on how to proceed, as they felt they had been ambushed with a point of law, i.e., on the correct identity of the respondent herein. The applicant felt he needed time to investigate the true identity of the respondent and make further submissions to the court before a ruling could be handed down. That application was opposed and led to an equally protracted contestation. That matter was ultimately heard and disposed of on the 25th November 2025.

Preliminary Points Taken

I now proceed to deliver my ruling on the preliminary points raised by *Mr. Matapura* as follows:

1. **Application improperly before the court, alternatively, that this court has no jurisdiction to entertain the application.**

Under this head respondent argued that in terms of the 2013 Constitution of our land, and the High Court Rules 2021, the Labour Court and the High Court only interact with each other in one instance, i.e., at registration of its judgments. With this view, he argued that this court is non-suited to entertain an application for revival of a Labour court judgment. He contended that it is not appropriate to rely on this court's inherent jurisdiction. He narrowed his argument to three sub-heads, viz.

a) that there is no law, either statute or common law, that permits such procedure.

   He relied on the judgment of CHITAPI J, in the matter of *Klasid Investment (Pvt) Ltd v Live Investment (Pvt) Ltd* HH228-24

b) that because of the amendment to the 1971 Rules, especially Rule 69, the position is now that High Court Judgments do not superannuate for up to 30 years, and *in casu,* the 30-

year period had not yet lapsed. For that reason, he contended that this application is improper.

c) That when seeking revival, it is compulsory to state that you seek a writ. He referred to Rule 69 of the High Court Rules 2021. He argued that *in casu* the applicant seeks to revive the second leg of the Labour Court Judgment, which, if successful, he still ought to seek quantification of damages in lieu of reinstatement back at the Labour Court. He argued that a writ is not in sight, and this can't be an appropriate forum.

2. <u>That the application is predicated on a serious yet material non-disclosure.</u>

Counsel argued that a party who approaches the court on motion proceedings must do so with all candour. He further refined his argument into two sub-heads, viz.

a) That the applicant did not tell the court that he was at the labour court seeking the same relief, i.e., revival of the same order. That he failed to file heads, and the matter was deemed abandoned. And that had he done so, this court would have realised that he is forum shopping.
b) That he was advised in the year 2002 that he would not be reinstated and that he ought to have taken action then. For that reason, his matter is now prescribed.

3. <u>That the causa has prescribed in terms of the Labour Act.</u>

Counsel argued that whatever its complexion this matter remains an unfair labour practice. Relief therefore ought to have been sought within 2 years. Since he has not done so he is a victim of extinctive prescription.

4. **<u>That there is no entity at law existing by the name of Unifreight Holdings Limited</u>.**

Counsel argued that *in casu*, Unifreight is completely mis cited in its old or new form. He argued that the applicant cannot even seek to amend the citation of the respondent before the High Court, yet proceedings were before the Labour Court. Counsel cited several case law authorities to buttress his argument both in the Supreme Court and in the High Court.

Opposition by the Applicant.

Counsel for the applicant did not follow the sequence adopted by Counsel for the respondent in responding to the preliminary objections taken.

1. **Ad Material non-disclosure**

Mr. Tshuma referred the court to page 9 of the record, particularly para 20. It reads as follows:

"*20. Having failed to reach a consensual settlement of this issue with the respondent, I approached the Labour Court with an application to revive the judgment under cover of case number LC/MT/96/01 and judgment number LC/MT/27/2005 handed down by the Labour Court on the 16™ of December 2005. The respondent opposed that application and raised a preliminary point that the Labour Court, being a court limited by statute, had no jurisdiction to revive a superannuated judgment because such a claim is premised on the common law*."

Counsel then went on to argue that after this disclosure they further stated that they withdrew the application for revival in the Labour Court as they conceded that they were seeking a common law remedy before a court limited by statute. He made reference to page 78 of the record containing such submission. He further referred to Annexure "X" attached to its founding affidavit. He argued further that after the Labour Court accepted and endorsed the withdrawal it was not necessary to file Heads. For that reason, that matter cannot be correctly deemed abandoned. He contended that the point is ill taken and should fail.

2. **Ad Prescription**

Counsel *Tshuma* argued that it is a misplaced argument to aver that a failure to enforce a judgment of the year 2005 within a period of 2 years renders it prescribed. He argued that, instead the prescription of a court order is regulated by section 15 of the Prescription Act. Under that provision, he argued, it is clear, a court order prescribes after 30 years.

He argued that *in casu*, there is a court order which is a command for the respondent to act in a certain way i.e to reinstate the applicant failing which the parties should agree on a quantum of damages *in lieu* thereof. It is the administrative act which is being brought before this court not a plea to resolve a labour dispute between the parties. If anything, this court is being asked to exercise its administrative oversight in order to enable enforcement of the order.

He argued further that by definition prescription extinguishes a right, yet superannuation is a common law principle which says if you do not enforce your order within 3 years, you cannot thereafter do so without having obtained an order reviving it. In other words, a prescribed court order can not be revived yet a superannuated one can be revived so that it can be enforced.

Counsel then chronicled the history of the principle of superannuation as having been part of our law by reason of both the common law and the High Court Rules. He cited Order 40 Rule 448 of the 1971 Rules as having provided that an order of the court superannuates after 6 years. He argued further that the rule was repealed but the principle of superannuation was retained in our law by the 2013 Constitution, which provides that the common law in Zimbabwe is the Roman-Dutch Law as applied in the Cape of Good Hope.

He concluded by arguing that superannuation is a common law principle and not a creature of a statutory provision. It is retained as such by the Constitution. Therefore, in terms of the common law, an order superannuates after 3 years. If 30 years of prescription has not lapsed the order is still extant and the only way to revive it is via revival.

3. **Ad Lack of Jurisdiction or Wrong Forum**.

Mr. Tshuma argued further that the question that then arises is: to which court does one apply for revival of a superannuated court order? He submitted that he agrees with all case law cited by counsel *Matapura* to the effect that the Labour Court is of limited jurisdiction and has an exclusive right to adjudicate on purely labour matters to the exclusion of other courts. He accepts further that the Labour Court is a specialized court as created by the Constitution.

He interpreted this to mean the Labour Court cannot adjudicate on any matter that it is not specifically empowered by the Labour Act. He pursed his argument further to say the question one needs to ask oneself is:

a) Does the Labour Act allow it to revive its own judgments? The answer he contends is "No". It does not have such powers.
b) Does the principle of superannuation apply to labour matters? And the answer thereto is "Yes, it does."
c) Does it then mean a party with a superannuated judgment is without a remedy? The answer he submits is "No". The party has to approach the High Court. It is the court with inherent jurisdiction to deal with all civil and criminal matters which are not prohibited by any statute. *In casu* there is no provision to approach the Labour Court, so the remedy is to approach the High Court as the court with inherent jurisdiction. He relied on the judgment per MAKARAU J (as she then was) in the matter of *Sibanda & Anor Chinemhute N.O. & Anor* HH 131-04 wherein she remarked that:

> "Where a point of entry is hitherto non-existent for a member of the public in the form of procedure- one is inherently created in the interests of justice. This is a court of inherent jurisdiction."

He concluded on this point by submitting that Counsel *Matapura* conflated the two principles of superannuation and prescription. He made reference to the requirements that a litigant must satisfy to successfully mount a case for the revival of a superannuated judgment. He cited *Mafoko v Alcatel Lucent South Africa (Pvt) Ltd and Another*, 2015 ZALCTHB 240, where it was stated that;

> "It is trite law that a court has the discretion to either abide to an application for revival or to refuse it. A court will not revive an old judgment if on the facts before it such revival would be futile, will only lead to useless litigation, and would not give the applicant any real remedy. It therefore follows that in order for the present application for revival of the judgment to succeed it must be shown the judgment debt remains outstanding, either in whole or in part. Otherwise, revival of judgment would be futile and academic."

His point is, he submitted, that the requirements for reviving a superannuated judgment are quite distinct from the ones for prescription.

4. <u>Ad Wrong citation of the respondent</u>

Mr. Tshuma argued that this point was raised for the first time in the history of litigation between the parties. He argued that such is prejudicial to the applicant as he is not given an opportunity to carry out his own investigations and answer to that.

He argued further that one ought to raise such a point at the first opportune time, i.e., at the Labour Court. He contended that this same citation was used in the labour court, and the respondent came and defended the claim through its agents, gave evidence under oath, and answered to the applicant's claim. Respondent never objected to that claim. For the past 19 years, they engaged the applicant and never raised that objection. The present matter is just an application to revive the order of the court so that the matter can revert to the Labour Court for quantification of damages. This court is tasked simply with the task of reviving the order of the Labour Court and referring it back to the relevant court for quantification of damages. He argued that it is for the labour court to deal with the issue of citation of the respondent, and it is open for the applicant to raise his defences at that platform. For now, the respondent is estopped from raising that argument.

Ad Costs

Mr. Tshuma argued that since applicant was never informed that he would not be re-instated he is entitled to make an application as the current applicant to protect his rights, therefore, there is no need to penalise him with any punitive costs, even the preliminary points were to be upheld.

Replication by Counsel for the Respondent

Mr. Matapura replicated to the effect that the preliminary point of mis-citation of the respondent is a point of law and can be raised at any time. He relied on the authority of Garia Safaris, Mukarati, Marage Resources and Delta Beverages matters.

He argued that *in casu* there was no application for amendment and therefore none can be granted.

He argued that the principle that this court has powers to regulate its own process simply means the discretion is limited to judgments made by itself, not any other court. He argued that

if the logic propounded by the applicant's counsel is accepted then it means the High Court has inherent powers to revive the Supreme and Constitutional Court orders.

He argued that the repeal of the 1971 Rules and failure to provide a similar provision in the 2021 Rules simply meant the legislature created a lacuna which ought to be addressed by the same legislature.

He argued further that a failure to comply with a Labour Court order amounted to an unfair labour practice. The remedy for such would be to approach the Labour officer within 2 years. He contended that in our jurisdiction prescription depends on the parent Act so if section 3 of the Labour Act stipulates 3 years, that ought to be the apex. The argument about the 30-year prescription does not apply.

Mr. Matapura further argued that the respondent is not estopped from raising the mis-citation argument. He argued that a nullity is a nullity even without a court order and applicant therefore has no respondent before the Court. He persisted with a prayer for the upholding of the preliminary points he took on behalf of the respondent.

The Law Juxtaposed to the Preliminary Points raised.

Ad Jurisdiction

While I agree with Counsel *Matapura* in his argument that the only time the High Court has an interface with the Labour Court is at registration and enforcement stage of its judgments, I do not accept that a party who finds his / her judgment superannuated is without a remedy. The Labour Court as a creature of statute, enjoys no such powers however revival of a judgment is essentially part of its enforcement process. I accept the reasoning of MAKARAU J (as she then was) in the cited matter of *Martin Sibanda & Anor v Bearson Chinemhute N.O. & Anor* HH 131-04 and the matter of *Cassimjee v Minister of Finance* (455/11) [2012] ZASCA 101 (June 2012) to the effect that;

> "The High Court has inherent power both at common law and in terms of section (s173) to regulate its own process…."

I say so from the logic that the Labour Court is simply a specialised division of the same High Court. While it may not have powers prescribed in its specialised form as the Labour

court, it retains such power in its original form. As indeed Counsel *Matapura* avers, the repeal of the 1971 Rules at Order 40 Rule 448 and failure to provide a similar provision in the 2021 Rules meant the legislature created a lacuna. In the Supreme Court matters of *S v Gumbura* SC25-2021 *and Barbarosa De Sa v Barbarosa De Sa* SC34-2016 the common principle enunciated therein is that a court of inherent jurisdiction has default powers which it can exercise in the absence of express power and can deal with all areas of law and all procedural matters involving the administration of justice.

In *casu* I am convinced that the court has jurisdiction over the application made.

Ad Material non-disclosure

I take note that during his replication Counsel *Matapura* did not deal with this point. I take it to mean he concedes that indeed full and sufficient disclosure was made of the history of this matter in applicant's founding affidavit. If counsel did not intend to make this concession, I nonetheless find that disclosure was made and in fact that a similar claim filed in the Labour Court was withdrawn with a tender of costs. It is therefore not correct that it was deemed abandoned. I accordingly dismiss this preliminary point.

Ad Prescription

I do not accept the view by counsel *Matapura* that an application for revival of a superannuated judgment is on the same footing as a claim made under the head of an unfair labour practice. It submits to no argument that there is a court order that remains extant. This matter is therefore governed by section 15 of the Prescription Act at item (a) (ii), which provides as follows:

"*The period of prescription of a debt shall be—*

(a) thirty years, in the case of—

(i) a debt secured by mortgage bond

;(ii) a judgment debt;

(iii) a debt in respect of taxation imposed or levied by or under any enactment;

(iv) a debt owed to the State in respect of any tax, royalty, tribute, share of the profits or other similar charge or consideration payable in connection with the exploitation of or the right to win minerals or other substances;"

The preliminary point taken by counsel for the respondent is therefore ill taken and accordingly dismissed.

Ad Wrong Citation

While it is true that a point of law can be taken at any stage in litigation, I am mindful of the fact that the parties in their long history of litigation in the Labour Court spanning over the past 19 or so years, the respondent came to court, answered to that name and defended the claim. It made no issue out of its citation. It is however, not for this court to deal with the issue of the parties' names or their citation. The ambit of this court is simply an application for the revival of a judgment. This court will deal with the parties as they appeared in the Labour Court. It is only the Labour court that can entertain an application for amendment or not, if this court accedes to the revival. For that reason, I refuse to deal with this preliminary point as it is raised in the wrong forum.

In the foregoing, the following disposition is made,

Disposition

a. All the preliminary points be and are hereby dismissed.
b. The matter to be set down for arguments on the merits.
c. Costs of suit shall be in the cause.

Webb, Low & Barry Inc Ben Baron & Partners, applicant's legal practitioners
Mafongoya and Matapura Law Practice, respondent's legal practitioners